

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mara Ellison's Combined Petition for Panel Rehearing and Rehearing En Banc

Filed July 14, 2026

Mara Ellison respectfully asks the panel to rehear its June 30 decision or, alternatively, asks the active judges to rehear the appeal en banc. The petition accepts the jurisdictional dismissal of Officer Nolan Rusk's factual-sufficiency challenge. It contests only the legal holding that Rusk receives qualified immunity on the facts the district court was required to assume for Ellison.

The panel recognized that *Estate of Armstrong v. Village of Pinehurst* gave officers prospective notice after 2016 that electrical force requires an immediate safety risk reasonably likely to be addressed by that force. It nevertheless treated the number of cycles and the precise mechanics of resistance as defeating fair notice. That treatment narrows *Armstrong* past its own expressly prospective rule and conflicts with this Court's particularized excessive-force decisions.

Rehearing matters beyond these parties because welfare seizures frequently involve distress, noncompliance, and physical movement without danger. The panel's rule permits an officer to evade notice by reducing repeated, unlawful electrical force to one full cycle even when the assumed person is unarmed, outnumbered, not fleeing, and not threatening anyone. Ellison asks the Court to restore the distinction controlling circuit law draws between resistance and immediate risk.

Timeliness and Questions Presented

Judgment was entered June 30, 2026. This petition is filed fourteen days later and is timely under Federal Rule of Appellate Procedure 40. The case does not involve the United States, its agency, or its officer, so no extended government period applies. A timely combined petition postpones ordinary mandate issuance until the Court resolves it and the later interval prescribed by Rule 41 runs.

The petition presents two related questions. First, did the panel overlook *Armstrong's* prospective, circumstance-specific notice that an officer may not use a taser against an outnumbered mental-health subject whose resistance creates no immediate safety risk? Second, does the panel's reliance on differences in cycle count and body movement conflict with decisions holding that modest resistance does not authorize painful, injurious force once danger is absent?

Ellison does not ask the appellate court to decide whether her account is true. She accepts that a jury ordinarily would resolve the hidden strike and reach. Nor does she ask the Court to treat the later decision in *Zorn v. Linton* as notice that existed in 2025. Her point is temporal and doctrinal: the February 2025 law already included *Armstrong*, *Smith v. Ray*, *Meyers v. Baltimore County*, and *Yates v. Terry*. A 2026 specificity decision cannot erase the fair warning those earlier holdings supplied.

Either panel correction or en banc consideration is warranted before the mandate ends this action.

I. The Petition Respects the Collateral Boundary

The district court separated two determinations. It found sufficient evidence for a jury to decide whether Ellison merely recoiled and pulled or instead struck Rusk and approached his belt. It then held that, on Ellison's supported version, the force violated clearly established law.

JA246–253. *Johnson v. Jones* bars immediate review of the first determination while permitting review of the second as a legal issue.

The panel followed that boundary when it dismissed Rusk's efforts to interpret the obstructed recordings in his favor. Ellison seeks no rehearing of the dismissal. For present purposes, she assumes the precise facts the panel recited: no crime, weapon, strike, grab, reach, flight, threat, or immediate danger; a pain-driven pull during wrist control; one command; no meaningful time for slower communication or Vega's assistance; one five-second drive stun; and a forcible descent causing burns and strain.

Those assumptions matter because the immunity ruling cannot be defended with Rusk's contested story. The physical movement may be called active in the ordinary-language sense, but it must remain nonviolent and nondangerous in the legal analysis. Characterizing the pull as “kinetic” cannot quietly reintroduce the excluded forearm strike or equipment reach.

Rehearing can therefore occur entirely within collateral jurisdiction. The Court need only compare binding law available by February 3, 2025 with the assumed conduct. No credibility choice, video reconstruction, or prediction about a later jury verdict is necessary.

II. Armstrong Announced Prospective Fair Warning

Armstrong, 810 F.3d 892, did more than condemn five shocks on an unusual historical record. After granting the 2011 officers immunity, the Court deliberately clarified the governing rule for future conduct: a taser, as a weapon expected to inflict pain or injury, may be deployed only when an exigency creates an immediate safety risk and the device is reasonably likely to cure that risk. Officers were told that mental illness and conduct labeled resistance do not themselves supply danger.

That prospective instruction was published nine years before Ellison's encounter. It addressed a protective mental-health seizure, nonviolent physical resistance, drive-stun operation, multiple officers, and a subject who was not dangerous to others. The rule is not a free-floating command to use reasonable force. It identifies the force, the encounter, the resistance category, and the missing justification.

The panel correctly declined to disregard the notice simply because *Armstrong*'s defendants received immunity for earlier events. It then deprived the notice of operative effect by treating five applications as the only clearly governed number. But *Armstrong* explained why taser force was impermissible, not merely why its fifth use crossed a line. The absence of an immediate risk rendered the weapon disproportionate and unlikely to accomplish a safety purpose.

Ellison's assumed pull did not create danger. If *Armstrong* does not clearly govern even one complete pain cycle in that circumstance, its stated prospective boundary has no practical first application.

III. One Cycle Is Not a Legally Empty Unit

The opinion repeatedly contrasts five applications in *Armstrong* with one application here. Quantity affects the severity of a constitutional violation, but no precedent establishes a free first cycle. One five-second drive stun intentionally delivers electrical pain and can produce injury. Ellison's burns and shoulder strain confirm that the challenged sequence was consequential, although injury alone is not the constitutional measure.

The force was also paired with a takedown. On the assumed facts, Rusk seized a seated welfare-check subject, heard her say she was hurt, warned only that she should stop pulling, and escalated within seconds rather than permitting Vega to assist. He was not trying one limited pain technique after other proportional methods failed over time. The panel's description of a materially reduced application understates the combined event.

Yates and *Meyers* condemn repeated force after circumstances change, but their reasoning does not imply that an officer may always initiate electrical force against a nonthreatening resister. *Smith* likewise rejects translating modest movement into a justification for a violent descent. Together with *Armstrong*, those decisions gave specific notice that degree of force must track danger, not just disobedience.

Rehearing should eliminate the numerical safe harbor. The proper comparison asks whether the first challenged cycle had an immediate safety justification. Under the assumed record, it did not. Reducing repetitions may reduce damages or distinguish later applications; it cannot make an unjustified initial use legally unforeseeable.

IV. Movement Did Not Supply the Missing Exigency

The panel distinguished “stationary” resistance in *Armstrong* from Ellison's active arm pulling. Yet Armstrong physically wrapped himself around a post and resisted several people attempting to remove him. The Court expressly said that resistance can include preventing officers' manipulation of the body without creating a safety risk. The prospective rule turned on danger, not geometric immobility.

Ellison concedes movement. She does not claim compliance. For immunity analysis, however, her movement was a recoil from pain and a pull against wrist control, unaccompanied by striking, grabbing, flight, a weapon, equipment access, or any threat. Rusk had Vega nearby. The narrow breezeway existed, but the assumed facts exclude a danger arising from it.

Calling that movement “active” risks importing a conclusion the district court rejected at summary judgment. Fourth Amendment doctrine differentiates dangerous resistance from noncompliance that is physical but minimally risky. *Armstrong* made the same distinction in a mental-health context. *Smith* and *Rowland v. Perry* likewise warn against treating a modest effort to free oneself from an officer's grasp as permission for substantially greater force.

The panel could distinguish a person who swings at an officer or reaches toward a weapon. Those are Rusk's allegations, not the assumed facts. It should not create a new distinction between stationary and moving nonviolent resistance when binding precedent identified immediate safety risk as the constitutional hinge.

V. Warnings Do Not Replace Proportionality

The opinion notes that Rusk told Ellison to stop pulling before the cycle. A warning is relevant to total reasonableness and to whether an official had time to calibrate force. It does not manufacture danger or make any announced response lawful. The assumed sequence includes Ellison's immediate statement that the wrist grasp hurt and no meaningful pause for slower communication.

Zorn emphasizes repeated warnings before a routine wristlock used to move a deliberate trespasser. That March 2026 decision involved no electrical weapon and arose after the conduct here. Even as a current methodological guide, it does not hold that one command licenses an otherwise disproportionate device use against a distressed person who committed no offense.

The panel acknowledged these differences but used *Zorn* to require a precedent matching the single-cycle mechanics. That approach permits an intervening opinion to heighten retroactively what older circuit authority needed to say. By the encounter date, *Armstrong* already specified taser force, nonviolent resistance, protective seizure, absence of danger, and multiple-officer control. Nothing in *Zorn* makes those dimensions irrelevant.

A reasonable officer could consider a warning when choosing among proportionate control methods. He could not treat “stop pulling” as a substitute for the immediate-risk condition *Armstrong* imposed on the weapon itself. Panel rehearing should correct that doctrinal displacement; en banc review is appropriate if the panel believes a later Supreme Court instruction compels it.

VI. Barricks Supports Denial on Assumed Facts

Barricks v. Wright was decided after Ellison's encounter but before this appeal. Like *Zorn*, it cannot supply historical notice. It does show how this Court applies collateral jurisdiction and evaluates whether an assumed use of force falls within a sufficiently particularized line of earlier decisions.

In *Barricks*, the Court refused to review factual disputes shown incompletely by body-camera evidence, accepted the plaintiff-favorable account, and held that a collection of circuit cases clearly established the prohibition despite factual distinctions. The officer's alleged blows were more numerous and injuries more grave than Ellison's. The method did not require an earlier case matching the exact count, body position, and technique.

Here the earlier collection is at least as focused on the critical relationship. *Armstrong* supplies the same weapon mode and mental-health purpose, while *Yates*, *Meyers*, and *Smith* address nonthreatening resistance, timing, and painful force. Together they told an officer that electrical pain and a forcible descent cannot rest only on a subject pulling from restraint without danger.

The panel invoked *Barricks* for jurisdiction but departed from its notice analysis by converting every factual difference into uncertainty. Particularity avoids vague rules; it does not demand a previous reported case involving exactly one five-second drive stun against exactly one seated person in exactly one breezeway. Rehearing would align the two parts of the Court's current qualified-immunity doctrine.

VII. Importance for En Banc Consideration

The panel opinion creates uncertainty across recurring welfare encounters. Officers routinely meet people who are distressed, slow to comply, or physically protective of a painful limb. If the presence of any movement and one preceding command defeats *Armstrong's* notice, the circuit's protective-seizure rule will apply only after repeated device cycles or perfect stillness—limitations the precedent did not announce.

The issue also affects the administration of collateral-order appeals. District courts can specify plaintiff-favorable facts, but those findings offer little protection if an appellate court relabels nondangerous movement at a higher level and requires a precedent matching every force increment. That method shifts factual characterization into the legal prong and weakens *Johnson's* boundary.

En banc review would permit the Court to state a stable rule: when assumed resistance creates no immediate safety risk, *Armstrong* gave post-2016 officers fair notice against drive-stun deployment during a protective mental-health seizure. The rule would not decide cases involving strikes, weapon access, flight, dangerous surroundings, probe deployment at distance, or force used to stop self-harm. Those remain materially different.

This petition does not contend that all pain compliance is electrical force or that *Zorn* lacks binding effect. It asks the Court to respect temporal notice and the already particular dimensions of circuit precedent. The question is exceptional because the panel's holding narrows a published prospective warning before this Court has applied it to a later officer.

VIII. Relief Requested

The panel should grant rehearing, withdraw the June 30 opinion and judgment, and issue a revised decision dismissing Rusk's factual-sufficiency challenge while affirming the denial of qualified immunity on Ellison's assumed facts. That disposition would leave a jury to determine which account of the obstructed interval occurred and would express no view on Rusk's immunity if his asserted strike and belt reach are later found.

Alternatively, the active judges should grant rehearing en banc, vacate the panel judgment, and establish a schedule for supplemental briefing and argument. Ellison requests no expansion of the appendix and no appellate factfinding. The existing record and the district court's explicit assumptions provide everything needed to resolve the legal question.

Counsel certifies that this combined petition was filed electronically and served on Officer Rusk's counsel on July 14, 2026. The filing is within the fourteen-day period, complies with the applicable length limit, and contains no material outside the certified record except citations to judicial decisions. Ellison has not filed a separate, duplicative en banc request.

Until this petition is decided, the mandate should remain withheld by operation of the appellate rules. Ellison does not seek a discretionary stay through this filing; she invokes only the ordinary consequence of a timely rehearing petition. If rehearing is denied, the mandate calculation begins from the denial order as Rule 41 prescribes.

Respectfully submitted for appellee Mara Ellison.